

ORIGINAL

(S E R V E D)
(MARCH 20, 1992)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D. C.

March 20, 1992

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM, ET AL.

v.

**SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.**

**COMPLAINANTS' MOTION TO EXCLUDE
AMERICAN PRESIDENT LINES, LTD.'S
REVISED 1988 G.O. 11 REPORT**

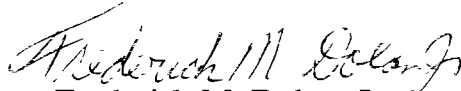
Complainants seek (1) to preclude American President Lines, Ltd., (APL), from introducing in this proceeding or otherwise referring to, its revised 1988 Statement of Financial and Operating Data termed G.O. 11 Report, filed with the Commission October 5, 1990, and the data reflected therein to the extent that such data are inconsistent with APL's original G.O. 11 report filed May 30, 1989; and (2) to bind APL by the data and conclusions set forth in its original 1988 G.O. 11 report. Complainants also filed a memorandum and affidavit.

APL replied.

Complainants rely on cases precluding a carrier seeking a general rate increase from supplanting its projection and estimates with later data of actual results. Such decisions are inapposite and offer no substantial support for excluding APL's later report. One question is which of these two G.O. 11 Reports contains the most reliable data and should be utilized in this proceeding. The Commission is interested in the reasons for the differences in the two reports and all the facts and circumstances bearing on this issue. The obvious and fairest solution is to accept both reports and allow full and complete inquiry into their differences and the adequacy of APL's explanations.

Upon consideration of Complainants' Motion to Exclude American President Lines, Ltd.'s Revised 1988 G.O. 11 Report, filed on February 26, 1992, it is HEREBY ORDERED:

That said Motion is denied.


Frederick M. Dolan, Jr.
Administrative Law Judge